imprisonment for rape, on the basis that this was inconsistent with modern penology.

After eleven years, three judgements, dozens of protests and a Law Commission report, the Mathura case ultimately prompted legislative amendments. However, the debates leading up to these amendments were marked by patriarchy and 'structured by the discourse of shame and stigma'.[24] One MP from the Congress party observed that: '[S]ome girls are very clever and are the agents of police. These days it's the world of politics, police can falsely accuse any-one it wants on charge of rape . . . You have written here that the girl's past history will not be asked, then how will you come to know about the girl?' Another from the Communist Party of India was not far behind: 'A rape victim is practically given the same status as a prostitute. She bears a stigma in the eyes of the society. She has to hide herself. She cannot openly say what's happened to her.'[25] And still another MP expressed a similar sentiment in the following words: 'Once a lady is raped, not only is she not acceptable by society, but also she is not acceptable by the parents . . . ultimately she has to live a life of a prostitute.'[26]

Perhaps unsurprisingly, then, the final product was significant but somewhat underwhelming. Many of the Law Commission's recommendations were disregarded. Parliament did not go so far as to presume a lack of consent when the complainant said she did not consent. Instead, it enacted special provisions to address custodial situations. Where a woman in police custody claimed that she did not consent, the courts would now have to presume that she did not consent. Provisions were also introduced to address custodial situations that did not meet the legal definition of rape. Where a public servant took advantage of his official position to have sex with a woman in his custody, he would now be liable to imprisonment of up to five years even in the absence of any evidence of rape. A similar provision was introduced in respect of superintendents of jails, remand homes and shelters.

The Law Commission's recommendation to avoid prescribing a minimum sentence of imprisonment for rape was disregarded. The minimum sentence for rape was now set at seven years in most instances,